

You are here: Driver & Event Management > Event Management > Withdrawal Types & Descriptions > Implied Consent

Implied Consent

When a person refuses to consent to a test or tests of the person's blood, breath, urine or other bodily substance for the purpose of determining alcohol concentration or drug content, the officer will then forward the Admin Per Se / Implied Consent Affidavit, form #40-5807 to the Division within 30 days after the arrest. The Division shall suspend the person's driving privilege for a period of one year. MVD action takes place after **15 days** if the violation date was before January 1, 2023 or after **30 days** if the violation date was on or after January 1, 2023.

- A second or subsequent refusal within a 84-month period shall result in a two-year suspension

The Implied Consent suspension will stay in effect until the person submits the following:

- Proof of future responsibility ([SR22](#))

View the [SR22](#) topic > [Verifying How Long a SR22 Is Required: DUI](#) section to determine how long they need to hold the SR22.



If the Admin Per Se / Implied Consent Affidavit is not received within 30 days after the arrest the Division shall not enter the order of suspension on the customer's record. This does not apply to violations that resulted in death or serious physical injury.

Violations after September 21, 2006 but before January 1, 2023 - Upon completing the mandatory 90-day suspension and meeting all applicable eligibility requirements, the customer may apply to the Division for a SIIRDL if the person has no previous Implied Consent suspensions within the past 84 months.

Violations on or after January 1, 2023 - Upon meeting all eligibility requirements, the customer may apply for a SIIRDL starting the first day of the Implied Consent suspension if the customer has no previous Implied Consent suspensions within the past 84 months.

For more information about SIIRDLs, view the [Special Ignition Interlock Restricted Driver License \(SIIRDL\) Issuance](#) topic.

A timely request for a hearing stays the suspension until the hearing is held, except that the Division shall not return any surrendered license or permit to the person but may issue temporary permit. If the results of the Hearing is not recorded, contact the Executive Hearing Office (602) 712-7737.

- The customer waives any rights to a hearing once a SIIRDL is issued



The Division takes no action when the Implied Consent violation occurred in another state, unless the licensee holds a Commercial Driver License (CDL).

▶ Alcohol Screening

Policies

[3.8.3 Suspensions](#)

[3.8.6 Restricted License - Permit](#)

[3.8.7 Temporary Licenses](#)

[3.8.10 Administrative Hearing Request](#)

[3.8.12 Special Ignition Interlock Restricted Driver License \(SIIRDL\)](#)

Forms

[Travel License/Identification Application, form #40-5122](#)

[Travel License/Identification Application \(Spanish\), form #40-5122s](#)

Charts

[MVD License Suspensions](#)

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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